

Shiv Shankar alias Shiv Shankar Awasthi v. State of U.P.

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 3 October 2024 · 2024:AHC-LKO:68589-DB
· WRIT-C No. 7192 of 2024 · **Liberty to apply under para 4.3; decision after hearing**

HEADNOTE

A connection standing in the petitioner's name, for a house he claims to have built on his brother's land, was disconnected after the brother sold the land and the purchaser asserted ownership. The writ is disposed with liberty to apply under paragraph 4.3 of the U.P. Electricity Supply Code, 2005. Opposite party no. 5 shall decide that application after hearing the brother and the purchaser. Restoration is not directed.

FACTUAL SUMMARY

The petitioners reside in a house built in 2013 on land of petitioner no. 1's brother, opposite party no. 7, who is said to have orally allowed construction and an electricity connection. Supply was in the brother's name until its transfer to the petitioner on 10 April 2024. The brother then sold the land. The purchaser told Madhyanchal Vidyut Vitran Nigam Limited he was owner, and the connection was disconnected. Regular Suit No. 875 of 2023, Smt. Meera Awasthi v. Kripa Shankar Awasthi, is pending over the property.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.3

application under para 4.3 after disconnection on a purchaser's ownership claim

HOLDING

The petition is disposed of with liberty to the petitioner to apply under paragraph 4.3 of the Electricity Supply Code before opposite party no. 5, who shall decide the application after hearing opposite party no. 7 and the purchaser. The Court did not direct restoration. It recorded the licensee's statement that reconnection would be considered if the petitioner established himself as occupier by an indemnity bond before the Executive Engineer. ¶ 2

PRINCIPLE TAGS

clauses-4.1-4.3-4.4-licensee-obliged-to-consider-and-grant-new-connection-speedily-if-no-impediment Opposite party no. 5 must decide the petitioner's paragraph 4.3 application after hearing the brother and the purchaser. The Court did not direct reconnection, and the licensee's own stand was only that reconnection would be considered after an indemnity bond establishing the petitioner as occupier. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED TO RESTORATION OF THE CONNECTION AS OCCUPIER

Left to opposite party no. 5 on a paragraph 4.3 application after hearing opposite party no. 7 and the purchaser. An indemnity bond was the licensee's stated route to be considered as occupier, not a finding by the Court. ¶ 2

NOT DECIDED — TITLE TO THE LAND ON WHICH THE HOUSE STANDS

Regular Suit No. 875 of 2023 remains pending. The writ court did not decide ownership. ¶ 2

